

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL 4326

By: Moore, Archer, and Deck of
the House

and

Seifried and Bullard of the
Senate

COMMITTEE SUBSTITUTE

An Act relating to the Oklahoma Higher Learning Access Program; amending 70 O.S. 2021, Section 2603, as last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2603), which relates to eligibility requirements; conforming language; updating statutory language; modifying eligibility for students in the court-ordered custody of a private nonprofit child-placing agency or a federally recognized Indian tribe during certain time; defining term; amending 70 O.S. 2021, Section 2605, as last amended by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2605), which relates to student agreements; updating statutory reference; clarifying application time period; modifying language regarding students who may apply for participation beginning in certain school year; increasing income limit for students who apply for participation beginning in certain school year contingent on certain certification; clarifying financial qualification determination for students determined to be independent; modifying the age by which certain students must apply for participation; directing the Oklahoma State Regents for Higher Education to verify certain certification of certain parents; modifying definition; modifying language regarding promulgation of rules; updating statutory language; amending 62 O.S. 2021, Section 34.87, as

1 amended by Section 1, Chapter 409, O.S.L. 2024 (62
2 O.S. Supp. 2025, Section 34.87), which relates to the
3 transfer of funds to the Oklahoma Higher Learning
4 Access Trust Fund; requiring certain calculations
5 utilizing certain methodologies; requiring certain
6 calculated amounts be reported to certain boards;
7 clarifying transfer determination; providing an
8 effective date; declaring an emergency; and providing
9 a conditional effective date.

10 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

11 SECTION 1. AMENDATORY 70 O.S. 2021, Section 2603, as
12 last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
13 2025, Section 2603), is amended to read as follows:

14 Section 2603. A. Except as otherwise provided for in
15 subsection B of this section and elsewhere in this section, to be
16 eligible to participate in the Oklahoma Higher Learning Access
17 Program and to qualify for an award which includes payment of an
18 amount equivalent to resident tuition or other tuition pursuant to
19 Section 2604 of this title for the first semester or other academic
20 unit of postsecondary enrollment, a student shall:

21 1. Be a resident of this state or be enrolled in a school
22 district located in this state that serves students who reside in
23 both this state and an adjacent state pursuant to a contract as
24 authorized in Section 5-117.1 of this title;

25 2. Be a United States citizen or lawfully present in the United
26 States. A student who is not a United States citizen or lawfully
27 present in the United States shall not be eligible to participate in

1 the Oklahoma Higher Learning Access Program and to qualify for an
2 award notwithstanding the provisions of Section 3242 of this title.
3 The provisions of this paragraph shall not apply to any student who
4 was enrolled in the Oklahoma Higher Learning Access Program prior to
5 the end of the 2006-2007 school year;

6 3. Have a record of satisfactory compliance with agreements
7 executed pursuant to Section 2605 of this title;

8 4. a. Have graduated within the previous three (3) years
9 from a high school accredited by the State Board of
10 Education or the Oklahoma School of Science and
11 Mathematics with a minimum 2.5 cumulative grade point
12 average on a 4.0 scale for all work attempted in
13 grades nine through twelve,

14 b. Have graduated within the previous three (3) years
15 from a high school not accredited by the State Board
16 of Education with a minimum 2.5 cumulative grade point
17 average on a 4.0 scale for all work attempted in
18 grades nine through twelve and have achieved a
19 composite score of 22 or higher on the ACT test, or

20 c. Have satisfactorily completed within the previous
21 three (3) years an educational program that was
22 provided through a means other than a public or
23 private school and have achieved a composite score of
24 22 or higher on the ACT test;

1 5. Have completed the curricular requirements for admission to
2 an institution within The Oklahoma State System of Higher Education
3 or have completed the core curriculum and be seeking admission to a
4 technology center school governed by the State Board of Career and
5 Technology Education. Students shall also have attained a 2.5 grade
6 point average in the ~~core~~ Oklahoma's Promise required curriculum
7 courses. Students who attended a high school which did not offer
8 all the ~~core~~ Oklahoma's Promise required curriculum courses or
9 students who were educated by other means and were not offered all
10 the ~~core~~ Oklahoma's Promise required curriculum courses shall be
11 allowed to satisfy this curriculum requirement by participating in a
12 program approved by the Oklahoma State Regents for Higher Education
13 for remediation of high school curricular deficiencies;

14 6. Have satisfied admission standards as determined by the
15 Oklahoma State Regents for Higher Education for first-time-entering
16 students for the appropriate type of institution, or, if attending a
17 private institution, have satisfied admission standards as
18 determined by the private institution. No student participating in
19 the Oklahoma Higher Learning Access Program shall be admitted into
20 an institution of higher education by special admission standards;

21 7. Have secured admission to, and enrolled in, an institution
22 which is a member of The Oklahoma State System of Higher Education,
23 a postsecondary vocational-technical program offered by a technology
24 center school that meets the requirements to be eligible for federal

1 student financial aid, or a private institution of higher learning
2 located within this state and accredited pursuant to Section 4103 of
3 this title; and

4 8. a. Have established financial need according to the
5 provisions of subsection D of Section 2605 of this
6 title and standards and provisions promulgated by the
7 Oklahoma State Regents for Higher Education,

8 b. If the student was adopted between birth and twelve
9 (12) years of age while in the permanent custody of
10 the Oklahoma Department of Human Services, in the
11 court-ordered custody of a ~~licensed~~ private nonprofit
12 child-placing agency licensed by the Oklahoma
13 Department of Human Services, or federally recognized
14 Indian tribe, as defined by the federal Indian Child
15 Welfare Act of 1978, have established financial need
16 according to the provisions of paragraph 1 of
17 subsection E of Section 2605 of this title and
18 standards and provisions promulgated by the Oklahoma
19 State Regents for Higher Education,

20 c. If the student was adopted ~~between~~ after reaching
21 thirteen (13) years of age and ~~seventeen (17)~~ prior to
22 reaching eighteen (18) years of age while in the
23 permanent custody of the Oklahoma Department of Human
24 Services, in the court-ordered custody of a ~~licensed~~

1 private nonprofit child-placing agency licensed by the
2 Oklahoma Department of Human Services, or federally
3 recognized Indian tribe, as defined by the federal
4 Indian Child Welfare Act of 1978, have established
5 financial need according to the provisions of
6 paragraph 2 of subsection E of Section 2605 of this
7 title and standards and provisions promulgated by the
8 Oklahoma State Regents for Higher Education,

- 9 d. ~~If the student was placed~~ Was in the custody of the
10 Oklahoma Department of Human Services, in the court-
11 ordered custody of a private nonprofit child-placing
12 agency licensed by the Oklahoma Department of Human
13 Services, or federally recognized Indian tribe, as
14 defined by the federal Indian Child Welfare Act of
15 1978, at any time during the eighth, ninth, tenth, or
16 eleventh grade and enrolls in the program no later
17 than his or her official date of high school
18 graduation, ~~have established financial need according~~
19 ~~to the provisions of paragraph 3 of subsection E of~~
20 ~~Section 2605 of this title and~~ any additional
21 requirements according to the standards and provisions
22 promulgated by the Oklahoma State Regents for Higher
23 Education, or
24

1 e. If the student is the child of a certified ~~classroom~~
2 teacher and meets the provisions of paragraph ~~5~~ 4 of
3 subsection E of Section 2605 of this title. For the
4 purposes of this paragraph, ~~"certified classroom~~
5 ~~teacher"~~ "certified teacher" shall have the same
6 meaning as provided in subparagraph d of paragraph ~~5~~ 4
7 of subsection E of Section 2605 of this title. A
8 certified teacher shall be considered the parent of a
9 student if the certified teacher is the natural or
10 adoptive parent or the permanent legal guardian of the
11 student.

12 B. 1. A student shall be eligible to participate in the
13 Oklahoma Higher Learning Access Program and to qualify for an award
14 which includes payment of an amount equivalent to resident tuition
15 or other tuition pursuant to Section 2604 of this title for the
16 first semester or other academic unit of postsecondary enrollment if
17 the student meets all of the following criteria:

18 a. is a child of any person killed after January 1, 2000,
19 in the line of duty in any branch of the United States
20 Armed Forces or who died after January 1, 2000, as a
21 result of an injury sustained while in the line of
22 duty in any branch of the United States Armed Forces
23 and the person who was killed or died filed an
24 individual or joint Oklahoma income tax return for the

1 tax year prior to the year during which the person was
2 killed or died,

3 b. is a resident of this state or is enrolled in a school
4 district located in this state that serves students
5 who reside in both this state and an adjacent state
6 pursuant to a contract as authorized in Section 5-
7 117.1 of this title,

8 c. enrolls in an institution within The Oklahoma State
9 System of Higher Education prior to reaching the age
10 of twenty-one (21),

11 d. has satisfied admission standards as determined by the
12 Oklahoma State Regents for Higher Education for first-
13 time-entering students for the appropriate type of
14 institution, or, if attending a private institution,
15 has satisfied admission standards as determined by the
16 private institution. No student participating in the
17 Oklahoma Higher Learning Access Program shall be
18 admitted into an institution of higher education by
19 special admission standards,

20 e. has secured admission to, and enrolled in, an
21 institution which is a member of The Oklahoma State
22 System of Higher Education, a postsecondary
23 vocational-technical program offered by a technology
24 center school that meets the requirements to be

1 eligible for federal student financial aid, or a
2 private institution of higher learning located within
3 this state and accredited pursuant to Section 4103 of
4 this title, and

5 f. executes an agreement pursuant to subsection C of
6 Section 2605 of this title.

7 2. A student who is eligible to participate in the program
8 pursuant to this subsection shall not be required to meet the
9 eligibility requirements set forth in subsection A of this section.

10 C. To retain eligibility while pursuing the program of higher
11 learning in which enrolled, the student shall:

12 1. Meet the requirements for retention and degree completion as
13 established by the institution in which the student is enrolled;

14 2. Maintain good academic standing and satisfactory academic
15 progress according to standards of the Oklahoma State Regents for
16 Higher Education;

17 3. Maintain satisfactory academic progress as required for
18 eligibility for federal Title IV student financial aid programs.
19 The provisions of this paragraph shall become effective for the
20 2012-2013 school year;

21 4. Comply with the standards related to maintenance of
22 eligibility as promulgated by the Oklahoma State Regents for Higher
23 Education; and
24

1 5. Refrain from conduct that leads to expulsion or suspension
2 of more than one semester from an institution of higher education.
3 A student who violates the provisions of this paragraph shall
4 permanently lose eligibility for program benefits. The provisions
5 of this paragraph shall become effective January 1, 2008.

6 D. The Oklahoma State Regents for Higher Education and the
7 State Board of Career and Technology Education shall promulgate
8 rules relating to maintenance of eligibility under the Oklahoma
9 Higher Learning Access Act by a student.

10 E. It is the intent of the Legislature that students in the
11 ninth grade for the 1992-93 school year who are determined to be
12 eligible Oklahoma Higher Learning Access students pursuant to the
13 Oklahoma Higher Learning Access Act shall be the first students
14 eligible for benefits from the Oklahoma Higher Learning Access Trust
15 Fund.

16 F. The Oklahoma State Regents for Higher Education are
17 authorized to study, develop, and propose criteria for determining
18 award eligibility based upon the completion of seven semesters of
19 high school coursework by a student.

20 SECTION 2. AMENDATORY 70 O.S. 2021, Section 2605, as
21 last amended by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
22 2025, Section 2605), is amended to read as follows:

23 Section 2605. A. Each school year, every fifth- through
24 eleventh-grade student in the public and private schools of this

1 state and students who are educated by other means and are in the
2 equivalent of the fifth through eleventh grade shall be apprised,
3 together with the parent, custodial parent, or guardian of the
4 student, of the opportunity for access to higher learning under the
5 Oklahoma Higher Learning Access Program. The Oklahoma State Regents
6 for Higher Education and the State Board of Education shall develop,
7 promote, and coordinate a public awareness program to be utilized in
8 making students and parents aware of the Oklahoma Higher Learning
9 Access Program.

10 B. On a form provided by the Oklahoma State Regents for Higher
11 Education, every public school district shall designate at least one
12 Oklahoma Higher Learning Access Program contact person, who shall be
13 a counselor or teacher, at each public school site in this state in
14 which eighth-, ninth-, tenth-, or eleventh-grade classes are taught.
15 When requested by the State Regents, the State Board of Education
16 shall assist the State Regents to ensure the designation of contact
17 persons. Private schools shall also designate at least one school
18 official as a contact person. For students who are educated by
19 other means, a parent or guardian or other person approved by the
20 State Regents shall be designated the contact person.

21 C. 1. Students who qualify on the basis of financial need
22 according to subsection D or E of this section or who meet the
23 eligibility qualification set forth in subparagraph d of paragraph 8
24 of subsection A of Section 2603 of this title or in subparagraph a

1 of paragraph 1 of subsection B of Section 2603 of this title no
2 later than December 31 of their twelfth-grade year or prior to
3 reaching the age of ~~seventeen (17)~~ eighteen (18) and who qualify on
4 the basis of the standards and provisions promulgated by the
5 Oklahoma State Regents for Higher Education shall be given the
6 opportunity ~~throughout the eighth-, ninth-, tenth-, and eleventh-~~
7 ~~grade years and no later than December 31 of the twelfth-grade year,~~
8 ~~for students enrolled in a public or private school, or between the~~
9 ~~ages of thirteen (13) and seventeen (17), for students who are~~
10 ~~educated by other means, to enter into participation in the program~~
11 ~~by agreeing to, throughout the remainder of their school years or~~
12 ~~educational~~ to enter into participation in the program:

13 a. for students enrolled in a public or private school,
14 throughout the eighth-, ninth-, tenth-, and eleventh-
15 grade years and prior to:

16 (1) December 31 of the twelfth-grade year, or

17 (2) the official date of high school graduation,
18 whichever occurs first, and

19 b. for students educated by other means after reaching
20 thirteen (13) years of age and prior to:

21 (1) reaching eighteen (18) years of age, or

22 (2) the date of completion of their educational
23 program, whichever occurs first.

24

1 2. Students who qualify on the basis of financial need
2 according to subsection D or E of this section or who meet the
3 eligibility qualification set forth in subparagraph d of paragraph 8
4 of subsection A of Section 2603 of this title or in subparagraph a
5 of paragraph 1 of subsection B of Section 2603 of this title shall
6 enter into participation in the program by agreeing throughout the
7 remainder of their school years or educational program to:

- 8 a. attend school or an educational program regularly and
- 9 do homework regularly,
- 10 b. refrain from substance abuse,
- 11 c. refrain from commission of crimes or delinquent acts,
- 12 d. have school work and school records reviewed by
- 13 mentors designated pursuant to the program,
- 14 e. provide information requested by the Oklahoma State
- 15 Regents for Higher Education or the State Board of
- 16 Education, and
- 17 f. participate in program activities.

18 ~~2.~~ 3. Students who meet the eligibility qualification set forth
19 in subparagraph a of paragraph 1 of subsection B of Section 2603 of
20 this title after December 31 of their twelfth-grade year or after
21 reaching the age of eighteen (18) shall be given the opportunity
22 prior to reaching the age of twenty-one (21) to enter into
23 participation in the program and shall execute an agreement with
24

1 provisions as determined by the Oklahoma State Regents for Higher
2 Education.

3 ~~3.~~ 4. The contact person shall maintain the agreements, which
4 shall be executed on forms provided by the Oklahoma State Regents
5 for Higher Education and managed according to regulations
6 promulgated by the Oklahoma State Regents for Higher Education, and
7 the contact person shall monitor compliance of the student with the
8 terms of the agreement. The Oklahoma State Regents for Higher
9 Education are authorized to process student agreements and verify
10 compliance with the agreements. Students failing to comply with the
11 terms of the agreement shall not be eligible for the awards provided
12 in Section 2604 of this title.

13 ~~4.~~ 5. The Oklahoma State Regents for Higher Education may
14 provide an exception to the age limits provided for in paragraphs 1
15 and ~~2~~ 3 of this subsection pursuant to subsection L of this section.

16 ~~5.~~ 6. Notwithstanding the provisions of Sections 5-132 and 5-
17 132.1 of this title, a student who is age twenty-one (21) or older
18 shall not be eligible to enter into participation in the program.

19 D. Except as otherwise provided for in subsection E of this
20 section and except for students who qualify pursuant to subsection B
21 of Section 2603 of this title, a student shall not be found to be in
22 financial need for purposes of the Oklahoma Higher Learning Access
23 Program if:
24

1 1. Beginning with eighth-, ninth-, or tenth-grade students who
2 are enrolled in a public or private school or students between the
3 ages of thirteen (13) and fifteen (15) who are educated by other
4 means who apply for participation in the program in the 2017-2018
5 school year, the federal adjusted gross income of the student's
6 parent(s) exceeds Fifty-five Thousand Dollars (\$55,000.00) per year;

7 2. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
8 students who are enrolled in a public or private school or students
9 between the ages of thirteen (13) and sixteen (16) who are educated
10 by other means who apply for participation in the program in the
11 2021-2022 school year, the federal adjusted gross income of the
12 student's parent(s) exceeds Sixty Thousand Dollars (\$60,000.00) per
13 year;

14 3. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
15 students who are enrolled in a public or private school or students
16 between the ages of thirteen (13) and sixteen (16) who are educated
17 by other means who apply for participation in the program in the
18 2022-2023 school year:

- 19 a. the federal adjusted gross income of the student's
20 parent(s), who have two or fewer dependent children,
21 exceeds Sixty Thousand Dollars (\$60,000.00) per year,
22 b. the federal adjusted gross income of the student's
23 parent(s), who have three or four dependent children,
24

exceeds Seventy Thousand Dollars (\$70,000.00) per year, or

- c. the federal adjusted gross income of the student's parent(s), who have five or more dependent children, exceeds Eighty Thousand Dollars (\$80,000.00) per year;

4. Beginning with ~~eighth-, ninth-, tenth-, or eleventh-grade students or twelfth-grade students no later than December 31 of their twelfth-grade year who are enrolled in a public or private school or students between the ages of thirteen (13) and seventeen (17) who are educated by other means~~ who apply for participation in the program in the 2025-2026 school year:

- a. the federal adjusted gross income of the student's parent(s), who have two or fewer dependent children, exceeds Sixty Thousand Dollars (\$60,000.00) per year,

- b. the federal adjusted gross income of the student's parent(s), who have three or four dependent children, exceeds Seventy Thousand Dollars (\$70,000.00) per year, or

- c. the federal adjusted gross income of the student's parent(s), who have five or more dependent children, exceeds Eighty Thousand Dollars (\$80,000.00) per year;

5. Beginning with eighth-, ninth-, tenth-, or eleventh-grade students or twelfth-grade students no later than December 31 of their twelfth-grade year who are enrolled in a public or private

1 school or students between thirteen (13) years of age and prior to
2 reaching eighteen (18) years of age who are educated by other means
3 who apply for participation in the program in the 2027-2028 school
4 year, the federal adjusted gross income of the student's parent(s)
5 exceeds One Hundred Thousand Dollars (\$100,000.00) per year. The
6 provisions of this paragraph shall not become effective as law until
7 the certification of election results favoring passage of the
8 constitutional amendment proposed in Enrolled House Joint Resolution
9 No. 1076 of the 2nd Session of the 60th Oklahoma Legislature or
10 Enrolled House Joint Resolution No. 1077 of the 2nd Session of the
11 60th Oklahoma Legislature;

12 6. Beginning with the 2018-2019 academic year, prior to
13 receiving any Oklahoma Higher Learning Access Program benefit award
14 for any year during which the student is enrolled in an institution
15 which is a member of The Oklahoma State System of Higher Education,
16 a postsecondary vocational-technical program offered by a technology
17 center school that meets the requirements to be eligible for federal
18 student financial aid, or a private institution of higher learning
19 located within this state and accredited pursuant to Section 4103 of
20 this title, the federal adjusted gross income of the student's
21 parent(s) exceeds One Hundred Thousand Dollars (\$100,000.00) per
22 year.

1 The determination of financial qualification as set forth in
2 this paragraph shall be based on the income of the student, not the
3 income of the parent(s), if a student:

- 4 a. is determined to be independent of the student's
5 parents for federal financial aid purposes at the time
6 of application,
- 7 b. was in the permanent custody of the Oklahoma
8 Department of Human Services at the time the student
9 enrolled in the program, or
- 10 c. was in the court-ordered custody of a federally
11 recognized Indian tribe, as defined by the federal
12 Indian Child Welfare Act of 1978, at the time the
13 student enrolled in the program.

14 The provisions of this paragraph shall apply to any student who
15 has received an Oklahoma Higher Learning Access Program benefit
16 award after the 2017-2018 school year; and

17 ~~6.~~ 7. The Oklahoma State Regents for Higher Education shall
18 review the determination of financial qualification as set forth in
19 paragraphs 1, 2, 3, ~~and 4,~~ and 5 of this subsection if the income
20 from taxable and nontaxable sources of the student's parent(s)
21 includes income received from nontaxable military benefits or income
22 received from the federal Social Security Administration due to the
23 death or disability of the student's parent(s). If the income from
24 taxable and nontaxable sources of the student's parent(s), excluding

1 income received from nontaxable military benefits or income received
2 from the federal Social Security Administration due to the death or
3 disability of the student's parent(s), does not exceed the
4 limitations set forth by paragraphs 1, 2, 3, ~~and 4,~~ and 5 of this
5 subsection, the student shall be determined to have met the
6 financial qualification set forth in paragraphs 1, 2, 3, ~~and 4,~~ and
7 5 of this subsection.

8 E. 1. A student who was adopted between birth and twelve (12)
9 years of age while in the permanent custody of the Oklahoma
10 Department of Human Services, in the court-ordered custody of a
11 ~~licensed~~ private nonprofit child-placing agency licensed by the
12 Oklahoma Department of Human Services, or federally recognized
13 Indian tribe, as defined by the federal Indian Child Welfare Act of
14 1978, shall not be found to be in financial need for purposes of the
15 Oklahoma Higher Learning Access Program if at the time the student
16 begins postsecondary education and prior to receiving any Oklahoma
17 Higher Learning Access Program benefit award, the federal adjusted
18 gross income of the student's parent(s) exceeds One Hundred Fifty
19 Thousand Dollars (\$150,000.00) per year. The provisions of this
20 paragraph shall not apply to any student who has received an
21 Oklahoma Higher Learning Access Program benefit award prior to the
22 2012-2013 school year.

23 2. A student who was adopted ~~between~~ after reaching thirteen
24 (13) years of age and ~~seventeen (17)~~ prior to reaching eighteen (18)

1 years of age while in the permanent custody of the Oklahoma
2 Department of Human Services, in the court-ordered custody of a
3 ~~licensed~~ private nonprofit child-placing agency licensed by the
4 Oklahoma Department of Human Services, or federally recognized
5 Indian tribe, as defined by the federal Indian Child Welfare Act of
6 1978, shall not be found to be in financial need for purposes of the
7 Oklahoma Higher Learning Access Program if at the time the student
8 begins postsecondary education and prior to receiving any Oklahoma
9 Higher Learning Access Program benefit award, the federal adjusted
10 gross income of the student's parent(s) exceeds Two Hundred Thousand
11 Dollars (\$200,000.00) per year. The provisions of this paragraph
12 shall not apply to any student who has received an Oklahoma Higher
13 Learning Access Program benefit award prior to the 2012-2013 school
14 year.

15 3. ~~A student who was placed in the custody of the Department of~~
16 ~~Human Services at any time during the eighth, ninth, tenth, or~~
17 ~~eleventh grade and enrolls in the program no later than his or her~~
18 ~~official date of high school graduation shall not be found to be in~~
19 ~~financial need for purposes of the Oklahoma Higher Learning Access~~
20 ~~Program if the federal adjusted gross income of the student exceeds~~
21 ~~Sixty Thousand Dollars (\$60,000.00) per year.~~

22 4. Except for students who qualify pursuant to subparagraph d
23 of paragraph 8 of subsection A and subsection B of Section 2603 of
24 this title, the determination of financial qualification as set

1 forth in this subsection shall be based on the income of the
2 student, not the income of the parent(s), if the student is
3 determined to be independent of the student's parent(s) for federal
4 financial aid purposes at the time of application. A determination
5 of financial qualification shall not be required for the student who
6 meets the criteria set forth in this subsection at the time the
7 student applies for participation in the program. The provisions of
8 this paragraph shall not apply to any student who has received an
9 Oklahoma Higher Learning Access Program benefit award prior to the
10 2008-2009 school year.

11 ~~5.~~

12 4. a. A student who is the child of a certified ~~classroom~~
13 teacher at the time the student applies for
14 participation in the Oklahoma Higher Learning Access
15 Program shall not be found to be in financial need for
16 the purposes of the Oklahoma Higher Learning Access
17 Program if, beginning with eighth-, ninth-, tenth-, or
18 eleventh-grade students or twelfth-grade students no
19 later than December 31 of their twelfth-grade year
20 who are enrolled in a public or private school or
21 students ~~between~~ after reaching thirteen (13) years of
22 age and ~~seventeen (17)~~ prior to reaching eighteen (18)
23 years of age who are educated by other means who apply
24 for participation in the program in the 2025-2026

1 school year, the household income of the student's
2 parent(s) is equal to or greater than seven hundred
3 percent (700%) of the federal poverty level (FPL).

4 b. Prior to receiving any Oklahoma Higher Learning Access
5 Program benefit award for any year during which the
6 student is enrolled in an institution that is a member
7 of The Oklahoma State System of Higher Education, a
8 postsecondary vocational-technical program offered by
9 a technology center school that meets the eligibility
10 requirements for federal student financial aid, or a
11 private institution of higher learning located within
12 this state and accredited pursuant to Section 4103 of
13 this title, the household income of the parent(s) of a
14 student who qualifies pursuant to this paragraph shall
15 not be equal to or greater than seven hundred percent
16 (700%) of the federal poverty level (FPL).

17 c. The Oklahoma State Regents for Higher Education shall
18 verify the full-time employment status of the
19 student's parent(s) and the current standard or
20 alternative certification in a classroom subject of
21 the parents prior to a student who qualifies pursuant
22 to this paragraph receiving any Oklahoma Higher
23 Learning Access Program benefit award.

d. For the purposes of this paragraph, ~~"certified classroom teacher"~~ "certified teacher" means a ~~certified,~~

(1) full-time classroom teacher who has a standard or alternative certificate to teach issued by the State Board of Education, teaches a classroom subject as determined by the State Regents, and who has been employed as a teacher in a public school district classroom in this state for a minimum of ten (10) years prior to his or her child applying for participation in the program.

(2) full-time counselor, librarian, school nurse, or athletic trainer who has a standard or alternative certificate to teach issued by the State Board of Education if employed by a public school district or a technology center school district in this state and otherwise fulfills the requirements of this paragraph, and

(3) full-time classroom teacher who has a standard or alternative certificate to teach issued by the State Board of Education who is employed to teach kindergarten through twelfth-grade public school students at a technology center school district in this state if the teacher is employed to teach

1 at least one fall and one spring semester class
2 per academic year that provides free public
3 education to at least one kindergarten through
4 twelfth-grade student and if the teacher
5 otherwise fulfills the requirements of this
6 paragraph.

7 e. The certified teacher ~~is~~ shall not be required to have
8 been employed by the same public school district for
9 ten (10) consecutive years and the ten (10) years of
10 employment shall not be required to be consecutive.
11 However, the ten (10) years of employment shall have
12 occurred in the last twenty (20) years.

13 f. Certified ~~classroom~~ teacher does not mean a certified
14 teacher who is employed as a school district
15 superintendent, principal, or any other position
16 within the administration of a public school district
17 when his or her child applies for participation in the
18 program or prior to his or her child receiving any
19 Oklahoma Higher Learning Access Program benefit award.

20 g. Employment as a teacher with an emergency or
21 provisional certificate shall not qualify for the
22 employment requirements of this paragraph.

23 F. The financial qualification of a student as set forth in
24 subsections D and E of this section shall be certified by the

1 contact person or by the Oklahoma State Regents for Higher Education
2 on the agreement form provided by the Oklahoma State Regents for
3 Higher Education. The form shall be retained in the permanent
4 record of the student and a copy forwarded to the Oklahoma State
5 Regents for Higher Education.

6 G. Agreements shall be witnessed by the parent, custodial
7 parent, or guardian of the student, who shall further agree to:

8 1. Assist the student in achieving compliance with the
9 agreements;

10 2. Confer, when requested to do so, with the school contact
11 person, other school personnel, and program mentors;

12 3. Provide information requested by the Oklahoma State Regents
13 for Higher Education or the State Board of Education; and

14 4. Assist the student in completing forms and reports required
15 for program participation, making applications to institutions and
16 schools of higher learning, and filing applications for student
17 grants and scholarships.

18 H. The Oklahoma State Regents for Higher Education shall
19 promulgate rules for Oklahoma's Promise related to applications,
20 parentage and guardianship, income documentation requirements, and
21 the determination of student compliance with agreements made
22 pursuant to this section.

23 I. The Oklahoma State Regents for Higher Education shall
24 designate personnel to coordinate tracking of program records for

1 the years when students participating in the program are still in
2 the schools or are being educated by other means, provide staff
3 development for contact persons in the schools, and provide liaison
4 with the State Board of Education and local organizations and
5 individuals participating in the program.

6 J. The school district where an Oklahoma Higher Learning Access
7 Program student is enrolled when the student begins participation in
8 the program and any subsequent school district where the student
9 enrolls shall forward information regarding participation by the
10 student in the program to a school to which the student transfers
11 upon the request of the school for the records of the student.

12 K. Students participating in the Oklahoma Higher Learning
13 Access Program shall provide their Social Security number or their
14 student identification number used by their school to the Oklahoma
15 State Regents for Higher Education. The State Regents shall keep
16 the numbers confidential and use them only for administrative
17 purposes.

18 L. The State Regents may provide an exception to the age limits
19 provided for in paragraphs 1 and ~~2~~ 3 of subsection C of this section
20 to a student due to hardship circumstances and allow an application
21 to the Oklahoma Higher Learning Access Program for twelfth-grade
22 students enrolled in a public or private school and students who are
23 educated by other means and are in the equivalent of twelfth grade.

1 Provided, however, the exception due to hardship circumstances shall
2 not apply to:

3 1. A student enrolled in a public or private school after the
4 student's official date of high school graduation;

5 2. A student educated by other means who is age nineteen (19)
6 or older; or

7 3. Any student who is age twenty-one (21) or older.

8 The Oklahoma State Regents for Higher Education shall promulgate
9 rules to implement the provisions of this subsection.

10 SECTION 3. AMENDATORY 62 O.S. 2021, Section 34.87, as
11 amended by Section 1, Chapter 409, O.S.L. 2024 (62 O.S. Supp. 2025,
12 Section 34.87), is amended to read as follows:

13 Section 34.87. In order to ensure that the Oklahoma Higher
14 Learning Access Program will be fully funded and all eligible and
15 qualifying students receive scholarships, the following procedures
16 shall be observed:

17 1. Not later than November 1, 2007, and November 1 of each
18 subsequent year, the Oklahoma State Regents for Higher Education
19 shall estimate for the fiscal year which begins the following July
20 1, the amount amounts of revenue they deem necessary to fund:

21 a. awards allowed pursuant to the Oklahoma Higher
22 Learning Access Act, ~~for the fiscal year which begins~~
23 ~~the following July 1 and provide such estimate to the~~

24

1 ~~State Board of Equalization~~ as the act existed at the
2 beginning of the 2026-2027 school year, and
3 b. awards allowed pursuant to any expansion of the
4 Oklahoma Higher Learning Access Act after the
5 beginning of the 2026-2027 school year. The Oklahoma
6 State Regents for Higher Education shall report the
7 estimate calculated pursuant to subparagraph a of this
8 paragraph to the State Board of Equalization, and the
9 estimate calculated pursuant to subparagraph b of this
10 paragraph to the Board of Investors of the Tobacco
11 Settlement Endowment Trust Fund;

12 2. At its meeting in December 2007, and December of each
13 subsequent year, held pursuant to the provisions of paragraph 1 of
14 Section 23 of Article X of the Oklahoma Constitution, the State
15 Board of Equalization shall determine the total amount of revenue
16 necessary to fund awards allowed pursuant to the Oklahoma Higher
17 Learning Access Act for the fiscal year which begins the following
18 July 1 and reflect such amount as it certifies amounts available for
19 appropriation from the General Revenue Fund by the Legislature for
20 such fiscal year and identify the amount to be authorized pursuant
21 to paragraph 3 of this section; and

22 3. Notwithstanding any other provisions of law directing the
23 apportionment of revenues, beginning with the fiscal year ending
24 June 30, 2009, and for each subsequent fiscal year, the Director of

1 the Office of Management and Enterprise Services shall transfer on a
2 periodic basis as needed the amount of revenue calculated pursuant
3 to subparagraph a of paragraph 1 of this section, to be deposited to
4 the Oklahoma Higher Learning Access Trust Fund, provided that the
5 total amount of such transfers in any fiscal year shall not exceed
6 the amount authorized for transfer by applicable budget legislation
7 for such fiscal year.

8 SECTION 4. Sections 1 and 2 of this act shall become effective
9 July 1, 2026.

10 SECTION 5. It being immediately necessary for the preservation
11 of the public peace, health, or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

14 SECTION 6. Section 3 of this act shall become effective only
15 upon certification of election results favoring passage of the
16 constitutional amendment proposed in Enrolled House Joint Resolution
17 No. 1076 of the 2nd Session of the 60th Oklahoma Legislature or
18 Enrolled House Joint Resolution No. 1077 of the 2nd Session of the
19 60th Oklahoma Legislature.

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